

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christina Vuong	Team: Squad #16	CCRB Case #: 201506702	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 07/31/2015 10:00 PM	Location of Incident: Jefferson Avenue and Howard Avenue	Precinct: 83	18 Mo. SOL 1/31/2017	EO SOL 1/31/2017	
Date/Time CV Reported Fri, 07/31/2015 11:04 PM	CV Reported At: IAB	How CV Reported: E-mail	Date/Time Received at CCRB Tue, 08/11/2015 12:57 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Ryan Galvin	08096	948997	081 PCT
2. POM Romando Julien	08171	949152	081 PCT
3. Officers			081 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Ere Powers	05297	944907	081 PCT
2. POM Vaughan Ettienne	29839	928258	081 PCT

Officer(s)	Allegation	Investigator Recommendation
A. Officers	Force: Officers used physical force against § 87(2)(b)	
B. POM Ryan Galvin	Force: PO Ryan Galvin used pepper spray against § 87(2)(b)	
C. POM Romando Julien	Force: PO Romando Julien used pepper spray against § 87(2)(b)	

Case Summary

On July 31, 2015, Sgt. Steven Vansoest of the 81st Precinct reported this complaint on behalf of injured prisoner § 87(2)(b) via email to IAB. On August 11, 2015, the CCRB received this complaint from IAB under log #15-22306.

On September 1, 2015, § 87(2)(b) who is presently incarcerated at Otis Bantum Correctional Center on Rikers Island, was contacted via videoconference call. He stated that he did not have a complaint against the officers involved in this incident and that he wanted the case closed § 87(2)(b). He denied that he was coerced by any member of the NYPD or CCRB into withdrawing his complaint. He confirmed that he made the decision entirely of his own free will. § 87(2)(b) agreed to sign and return a withdrawal letter, which was mailed to him on the same date and which will be added to the case file upon receipt. The recording of this call can be found in IA #32 [201506702_20150901_1359.DSS, beginning at the 0:23 time mark]. On September 4, 2015, Team Manager Robert Rodrigues reviewed the recording and confirmed that it adhered to CCRB guidelines.

§ 87(2)(g)

Pod:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date